



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 27, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202102029 regarding Detective Michael Klein, Tax No. 925811 (DADS No. 2022-26924)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the allegation against Detective Klein does not rise to the level of actionable misconduct. Here, Detective Klein is alleged to have improperly threatened to arrest an individual for filming within the station house.

While the video obtained by the CCRB does not have any audio, Detective Klein readily admitted to advising the individual that he could be arrested because Detective Klein reasonably believed, at the time the statement was made, that the individual was recording inside the station house after previously being warned not to. Additionally, as noted in the investigative file, two other officers also stated that they independently warned the individual not to film in the station house further evincing that all of the officers believed that the individual was recording or attempting to record in the station house. Thus, the actions of Detective Klein were proper.

Therefore, based on the foregoing, Detective Klein will receive no disciplinary action for the alleged violation of Patrol Guide Procedure No. 304-06 (Prohibited Conduct/Threat to Arrest).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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